

24NNCV03496 24NNCV03496

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION FOR
ATTORNEY'S FEES IN THE AMOUNT OF \$36,341.80

I. INTRODUCTION

On August 12, 2024, Plaintiff Edgard Ernesto Corado-Perez ("Plaintiff") filed this action against Defendants FCA US, LLC ("FCA") and Bravo Chrysler Dodge Jeep Ram of Alhambra asserting claims under the Song-Beverly Consumer Warranty Act arising from alleged defects in a motor vehicle. The parties ultimately resolved the matter through a settlement agreement executed on September 18, 2025.

On May 20, 2026, Plaintiff filed the instant motion for attorney's fees and costs. Defendant FCA US LLC served an opposition; however, due to a filing error, the opposition was not before the Court at the June 17, 2026, hearing. Plaintiff filed a reply on June 10, 2026.

At the hearing on June 17, 2026, the Court continued the matter to permit consideration of Defendant's opposition, which was subsequently filed on June 17, 2026. The Court now considers both Defendant's opposition and Plaintiff's reply in ruling on the motion.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).)

In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794(d).) Section 1794 provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794 [emphasis added].) Thus, the statute includes a "reasonable attorney's fees" standard.

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (Id.)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford, supra, 132 Cal.App.4th at 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The

lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

III. ANALYSIS

Entitlement to Attorney's Fees

Plaintiff seeks \$33,937.00 in attorney's fees, together with a 1.5 lodestar multiplier of \$16,968.50, for a total fee award of \$50,905.50. Plaintiff also seeks \$2,404.80 in costs and expenses. (Motion, pp. 1-2.)

The parties resolved this matter through a settlement agreement on September 18, 2025. Under the terms of the settlement, Defendant FCA US, LLC agreed to pay Plaintiff's reasonable attorney's fees, costs, and expenses pursuant to Civil Code section 1794(d). The agreement further provides that, for purposes of any fee motion, Plaintiff shall be deemed the prevailing party and may move for an award of reasonable attorney's fees and costs, while FCA retains the right to challenge the reasonableness of the hourly rates and hours claimed. (Wirtz Decl., Exh. 7.)

Thus, Plaintiff is the prevailing party and is entitled to recover reasonable attorney's fees and costs.

Reasonableness of Fees

Reasonable Hourly Rate:

To calculate a lodestar amount, the Court must first determine whether the hourly rates sought are reasonable. A reasonable hourly rate is that prevailing in the community for similar work performed by attorneys of comparable skill and experience. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.)

Here,
Plaintiff seeks compensation for work performed by attorneys and paralegals

from Norman Taylor & Associates and Wirtz Law at hourly rates ranging from \$250 to \$645. Counsel submits declarations establishing substantial experience in Song-Beverly Act litigation. Norman Taylor declares that he has practiced consumer warranty law since 1987, has prosecuted more than 100 consumer warranty trials and arbitrations involving lemon law claims, has assisted in the development of California's CACI jury instructions for Song-Beverly Act cases, and has authored publications concerning consumer warranty litigation. (Taylor Decl., ¶¶ 6-12.) Mr. Taylor bills at a rate of \$645 per hour. (Taylor Decl., ¶ 12.) Although Richard Wirtz submitted a declaration regarding his qualifications and experience in Song-Beverly Act litigation, he did not bill any time in this matter. (Wirtz Decl., ¶ 13.)

The attorneys and paralegals who billed in this case possess substantial experience in consumer warranty litigation. Amy Rotman and Jessica Underwood each have approximately ten years of experience litigating Song-Beverly Act matters and have worked on hundreds of lemon law cases. Both billed at a rate of \$600 per hour. (Wirtz Decl., ¶¶ 17-18.) Safia Bootwala billed at a rate of \$450 per hour and previously worked on consumer matters as a law clerk and certified post-bar clerk before becoming an attorney. (Wirtz Decl., ¶ 19.) Rebecca Evans, who billed at \$300 per hour, is a senior managing paralegal with several years of civil litigation experience. (Wirtz Decl., ¶ 20.) Norman Taylor's paralegals likewise possess experience in consumer warranty litigation and billed at a rate of \$300 per hour. (Taylor Decl., ¶ 13.)

Defendant opposes these hourly rates and argues they exceed prevailing market rates. Defendant cites numerous trial court orders reducing rates requested by Plaintiff's counsel in other Song-Beverly cases. Defendant urges the Court to reduce all attorney rates to no more than \$350 per hour and paralegal rates to \$100 per hour. (Opposition., pp. 9-11.)

Based on counsel's experience, specialization in Song-Beverly Act litigation, and the nature of the work performed, the Court finds the requested hourly rates reasonable. Plaintiff submitted declarations establishing counsel's qualifications, specialization, and experience in Song-Beverly litigation, as well as evidence supporting the requested market rates. The Court finds this evidence sufficient to establish that the requested hourly rates are reasonable.

Reasonable Hours Incurred:

The party seeking fees and costs

bears the burden to show “the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.)

Plaintiff seeks compensation for

74.5 hours of attorney and paralegal work incurred during the prosecution of this action. Specifically, Norman Taylor & Associates billed 27.1 hours and Wirtz Law billed 47.4 hours. (See Table, Motion, pp. 2–3.) The hours billed include work related to commencement of the action, written discovery, depositions, expert discovery, mediation and settlement efforts, client communications, post-settlement matters, and preparation of the instant motion.

Defendant argues the hours are

excessive because this was a routine Song-Beverly action litigated by two law firms, resulting in duplicative work, excessive client communications, excessive time spent drafting standard pleadings and written discovery, block billing, and excessive time devoted to preparing the instant fee motion. (Opposition., pp. 7-12.) Plaintiff responds that the billing records adequately describe the work performed, that counsel reasonably divided responsibilities between the two firms as the litigation progressed, and that Defendant failed to support its objections with competent evidence, instead relying on generalized assertions that the fees were excessive. (Reply, pp. 5-8.)

A plaintiff's verified billing

invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.)

Here, the Court finds that

Defendant has not demonstrated that the majority of the challenged entries are

unreasonable. Although Defendant contends there was duplicative work between Norman Taylor & Associates and Wirtz Law, the billing records reflect that the firms assumed responsibility for the matter at different stages of the litigation, and that the challenged entries generally involve distinct tasks reasonably performed in prosecuting Plaintiff's claims. Likewise, the Court is not persuaded that counsel's time spent reviewing the case file, preparing the complaint and written discovery, communicating with Plaintiff, or performing other litigation tasks was unreasonable merely because template documents or prior work product may have been utilized. Nor does the Court find that the billing records reflect impermissible block billing warranting an across the board reduction.

Further, the Court finds the hours expended reasonable. This action was filed on August 12, 2024, and did not resolve until September 18, 2025, remaining actively litigated for more than one year. During that time, counsel engaged in discovery, deposition preparation, settlement negotiations, and other litigation activities reasonably necessary to prosecute Plaintiff's claims. On this record, the Court finds that the 74.5 hours expended are reasonable and were reasonably incurred in connection with the prosecution of this action.

1.5 Lodestar multiplier

Plaintiff requests a 1.5 multiplier based upon the contingent nature of the representation and risk of nonpayment. (Motion, p. 9.)

The Court declines to apply a multiplier. Although counsel possess significant experience in Song-Beverly Act litigation and represented Plaintiff on a contingency basis, those factors are adequately reflected in the hourly rates awarded. Further, this case did not involve unusually complex legal or factual issues and resolved through settlement before trial.

Thus, the Court DENIES the request for a 1.5 lodestar multiplier of \$16,968.50.

Costs

Plaintiff seeks \$2,404.80 in costs

and expenses reflected in the memoranda of costs previously filed in this action. The Court finds the requested costs reasonable and recoverable. Thus, the Court awards Plaintiff costs in the amount of \$2,404.80.

IV. CONCLUSION AND ORDER

The Court

GRANTS Plaintiff's motion for attorney's fees and costs. Plaintiff is awarded \$33,937.00 in attorney's fees and \$2,404.80 in costs, for a total award of \$36,341.80. The Court declines to apply the requested 1.5 lodestar multiplier.

Plaintiff is to give notice.

Dated: July 13, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT